

JUSTICE BRENNAN delivered the opinion of the Court.

The question for decision is whether the Seventh Amendment guaranteed petitioner a right to a jury trial on both liability and amount of penalty in an action instituted by the Federal Government seeking civil penalties and injunctive relief under the Clean Water Act, 62 Stat. 1155, as amended, 33 U. S. C. § 1251 *et seq.*

I

The Clean Water Act prohibits discharging, without a permit, dredged or fill material into “navigable waters,” including the wetlands adjacent to the waters. 33 U. S. C. §§ 1311, 1344, and 1362(7); 33 CFR §§ 323.2(a)(1)–(7) (1986). “Wetlands” are “swamps, marshes, bogs and similar areas.” 33 CFR § 323.2(c) (1986). The Government sued petitioner, a real estate developer, for dumping fill on wetlands on the island of Chincoteague, Virginia. The Government alleged in the original complaint that petitioner dumped fill on three sites: Ocean Breeze Mobile Homes Sites, Mire Pond Properties, and Eel Creek. The Government later amended the complaint to allege that petitioner also placed fill in a manmade waterway, named Fowling Gut Extended, on the Ocean Breeze property.¹

Section 1319 enumerates the remedies available under the Clean Water Act. Subsection (b) authorizes relief in the form of temporary or permanent injunctions. Subsection (d) provides that violators of certain sections of the Act “shall be subject to a civil penalty not to exceed \$10,000 per day” during the period of the violation. The Government sought in

¹ Additionally, the Government alleged that petitioner’s dumping of fill in Fowling Gut Extended violated another statute, the Rivers and Harbors Act, which prohibits the placement of fill in navigable waters without the authorization of the Secretary of the Army. 33 U. S. C. § 403. Petitioner does not base his Seventh Amendment claim on the Government’s prosecution under this statute, which provides for injunctive relief but not for civil penalties.